

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO: NAME: John Podesta (SBN 154706); Darrell Nguyen (SBN 228959) FIRM NAME: Wilson Elser Moskowitz Edelman & Dicker LLP STREET ADDRESS: 655 Montgomery Street, Suite 900 CITY: San Francisco STATE: CA ZIP CODE: 94111 TELEPHONE NO.: 415-625-9258 FAX NO.: 415-434-1370 E-MAIL ADDRESS: darrell.nguyen@wilsonelser.com ATTORNEY FOR (Name): SF Multifamily III Property Owner LLC; Brick & Timber, Inc.	FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California, County of San Francisco 03/28/2025 Clerk of the Court BY: AUSTIN LAM Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco STREET ADDRESS: 400 McAllister Street MAILING ADDRESS: 400 McAllister Street CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME: Civic Center Courthouse	
PLAINTIFF/PETITIONER: Tanner Pikop DEFENDANT/RESPONDENT: SF Multifamily Pools 2-3 (B) Owner LLC	
DECLARATION OF DEMURRING OR MOVING PARTY IN SUPPORT OF AUTOMATIC EXTENSION	CASE NUMBER: CGC-24-620191

1. (Name of party): SF Multifamily III Property Owner LLC; Brick & Timber, Inc. was served with

☒ a complaint ☐ an amended complaint ☐ a cross-complaint
☐ an answer ☐ other (specify):
 in the above-titled action.

2. For a demurrer or motion to strike, a responsive pleading is due on (date): April 7, 2025

DECLARATION

I intend to file a demurrer, motion to strike, or motion for judgment on the pleadings in this action. Before I can do so, I am required to meet and confer with the party who filed the pleading that I am responding to at least five days before the date when the responsive pleading is due (if I am filing a demurrer or motion to strike) and at least five days before the last day a motion for judgment on the pleadings may be filed (if I am filing a motion for judgment on the pleadings). We have not been able to meet and confer. I have not previously requested an automatic extension of time. Therefore, on timely filing and serving a declaration that meets the requirements of Code of Civil Procedure sections 430.41, 435.5, or 439, I am entitled to an automatic 30-day extension of time within which to file a responsive pleading or motion for judgment on the pleadings.

I made a good faith attempt to meet and confer with the party who filed the pleading at least five days before the date the responsive pleading was due (if I am filing a demurrer or motion to strike) and at least five days before the last day a motion for judgment on the pleadings may be filed (if I am filing a motion for judgment on the pleadings). I was unable to meet with that party because (the reasons why the parties could not meet and confer are stated):

☒ below ☐ on form MC-031, Attached Declaration

I have not been able to meet and confer with counsel yet and I am out of the county on a pre-paid vacation from April 2 through April 10 and a responsive would be due on April 7, 2025.

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: March 28, 2025

Darrell Nguyen

(NAME OF PARTY OR ATTORNEY FOR PARTY)



(SIGNATURE OF PARTY OR ATTORNEY FOR PARTY)

PROOF OF SERVICE

Tanner Pikop v SF Multifamily Pools 2-3 (B) Owner LLC, et al.
San Francisco Superior Court Case No. CGC-24-620191

I, the undersigned, am employed in the county of San Francisco, State of California. I am over the age of 18 and not a party to the within action; my business address is 655 Montgomery Street, Suite 900, San Francisco, CA 94111.

On March 28, 2025, I caused to be served the following document(s) described as follows:

**DECLARATION OF DEMURRING OR MOVING PARTY IN SUPPORT OF
AUTOMATIC EXTENSION**

on the parties in this action by placing a true copy in a sealed envelope addressed as follows:

☐: **PERSONAL SERVICE** - I served the documents by placing them in an envelope or package addressed to the persons at the addresses listed below, and providing them to a professional messenger service for service. (A confirmation by the messenger will be provided to our office after the documents have been delivered.)

☐: **BY MAIL** - As follows: I am "readily familiar" with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with the U.S. Postal Service on that same day with postage thereon fully prepaid at San Francisco, California in the ordinary course of business. The envelope was sealed and placed for collection and mailing on this date following our ordinary practices. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

☐: **OVERNIGHT MAIL** - As follows: I am "readily familiar" with the firm's practice of processing correspondence for mailing overnight via Federal Express. Under that practice it would be deposited in a Federal Express drop box, indicating overnight delivery, with delivery fees provided for, on that same day, at San Francisco, California.

☒: **BY E-MAIL** - Based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission, I caused the documents to be sent to the persons at the e-mail addresses listed below. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

Executed on March 28, 2025, at San Francisco, California. I declare under penalty of perjury under the laws of the State of California, that the above is true and correct.



Griselia Flores

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SERVICE LIST

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